

FREE SAMOURAI

A Case for Executive Clemency

Keonne Rodriguez & William Lonergan Hill, co-founders of Samurai Wallet
United States v. Rodriguez & Hill, S.D.N.Y. No. 1:24-cr-00082

\$0

OF USER FUNDS EVER HELD

2

FIRST-TIME OFFENDERS

9

COMBINED YEARS IN
PRISON

1

SIGNATURE REQUIRED

Financial privacy is a human right. Software is speech.

PREPARED BY SUPPORTERS OF THE FREE SAMOURAI CAMPAIGN • FREESAMOURAI.COM

SOURCED FROM THE PUBLIC DOCKET, DOJ AND IRS-CI RELEASES, AND PUBLISHED REPORTING

NOT LEGAL ADVICE • NOT AN OFFICIAL FILING • FOR REVIEW AND FACT-CHECKING

The ask, in sixty seconds.

Two American software developers wrote a Bitcoin privacy application that never took custody of a single user's coins or private keys. They pleaded guilty to one regulatory offence — operating an unlicensed money transmitting business — and received the statutory maximum and near-maximum. This document asks the President to grant them a full and unconditional pardon.

5 yrs

RODRIGUEZ SENTENCE

Statutory maximum for the count of conviction

4 yrs

HILL SENTENCE

Age 67, downward variance after autism diagnosis

\$6.3M

FORFEITED

Plus \$250,000 fine each

\$0

CUSTODY HELD

Non-custodial by design; keys never left users

What a pardon does and does not do

A PARDON WOULD

- Release two first-time offenders who never controlled user funds.
- Draw a bright line between writing a tool and operating a financial service.
- Extend an existing pattern (Ulbricht, Zhao) rather than originate one.
- Require no act of Congress and no change to any statute.

A PARDON WOULD NOT

- Excuse or erase the criminal conduct of anyone who misused Samourai.
- Bar future prosecution of custodial mixers or knowing laundering.
- Prevent FinCEN from issuing clearer forward-looking guidance.
- Reverse the forfeiture already paid to the government.

Every figure in this document is drawn from the public record and is footnoted in Section 10. Where a fact is contested between the government and the defence, both versions are shown.

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Page numbers refer to this edition. Section 10 is the verification log: if a single claim in this document does not survive checking, it should be struck rather than softened.

How this document was built.

A clemency data room is only useful if the person reading it can trust every line of it. This edition therefore states the government's version of events first, in the government's own words and numbers, before making any argument. Nothing unfavourable has been removed.

Primary sources first

Court filings from S.D.N.Y. No. 1:24-cr-00082, DOJ and IRS-CI press releases, and sentencing memoranda from both sides.

Attributed reporting

Where a fact appears only in journalism (Reason, CoinDesk, Decrypt, Bitcoin Magazine), it is marked as reported, not established.

No inferred motive

Claims about what officials privately intended are excluded. Only what was said or filed publicly appears here.

Contested facts labelled

Where the government and the defence disagree, both positions are printed side by side rather than merged.

Figures carried, not rounded

Dollar amounts and dates are reproduced as they appear in the source, including where sources conflict.

Fact-check before use

This is a draft for verification against the docket before it is placed in front of anyone in the administration.

Reading the graphics

Charts in this document encode only figures that appear in the record. Amber marks facts favourable to clemency; red marks the government's case; teal marks structural or legal facts that are not in dispute. Nothing is estimated, modelled, or projected unless the page says so explicitly.

FAVOURABLE TO CLEMENCY
 GOVERNMENT'S CASE
 UNDISPUTED / STRUCTURAL
 CONTESTED BETWEEN PARTIES

SECTION

01

Executive Summary

Who these men are, what the software did, what happened to them, and the precise remedy being requested.

IN THIS SECTION

- The case in brief
- Custodial vs non-custodial: the structural fact
- The core argument
- The political case
- The ask

The case in brief.

Keonne Rodriguez (37) and William “Bill” Lonergan Hill (67) built Samourai Wallet, a non-custodial Bitcoin privacy application, beginning in 2015. Neither man ever held or controlled a user's funds or private keys. In November 2025, following guilty pleas to a single charge — conspiracy to operate an unlicensed money transmitting business — Rodriguez was sentenced to the statutory maximum of five years in federal prison, and Hill to four years. Both are now incarcerated.

This document makes the case that the President should grant Rodriguez and Hill a full and unconditional pardon, and lays out a practical plan for securing it.

The core argument

- **No custody.** According to public reporting, the Financial Crimes Enforcement Network advised prosecutors before indictment that a non-custodial service like Samourai did not meet the legal definition of a money transmitting business.
- **First-time offenders.** Both accepted plea agreements under the weight of a far larger potential sentence, rather than risk trial on the original money-laundering conspiracy charge carrying up to twenty years.
- **Users, not builders.** The prosecution turned on the conduct of a fraction of Samourai's users — not on Rodriguez or Hill personally laundering, trafficking, or profiting from underlying crimes.
- **Precedent risk.** Treating open-source software authorship as the equivalent of running a bank chills privacy and security software development generally — the Bitcoin Policy Institute warns it “collapses the distinction between developing a tool and operating a service.”

The ask

A full, unconditional pardon for Keonne Rodriguez and William Lonergan Hill — or, at minimum, a commutation of their remaining sentences — correcting what supporters view as the disproportionate criminalisation of privacy-preserving software development.

The political case.

The President has already engaged

Asked about the case in the Oval Office on 15 December 2025, the President said “I’ve heard about it, I’ll look at it,” and turned to the Attorney General with “We’ll look at that, Pam.”

It keeps a stated commitment

At the 2024 Bitcoin Conference in Nashville the President pledged to end what he described as the prior administration’s anti-crypto crusade and to protect self-custody.

The friction is already absorbed

Clemency for Ross Ulbricht and Changpeng Zhao established the pattern and took most of the political heat that such a decision generates.

The constituency is large

Stand With Crypto counts more than 50 million American voters who hold or have held cryptocurrency, skewing independent and libertarian-leaning.

Institutional cover exists

The Bitcoin Policy Institute and the Cato Institute have both gone on record; Cato called the case “a chilling moment for financial privacy.”

It costs nothing legislatively

The pardon power under Article II, Section 2 is unilateral. No bill, no rulemaking, no interagency process is required.

Cost/benefit of acting, at a glance

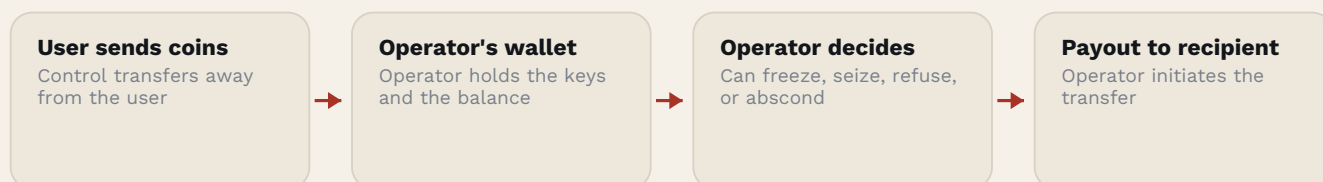


Illustrative scoring by the drafters to summarise the arguments on the preceding page; these are editorial judgements, not survey data, and are labelled as such.

Custody is the whole case.

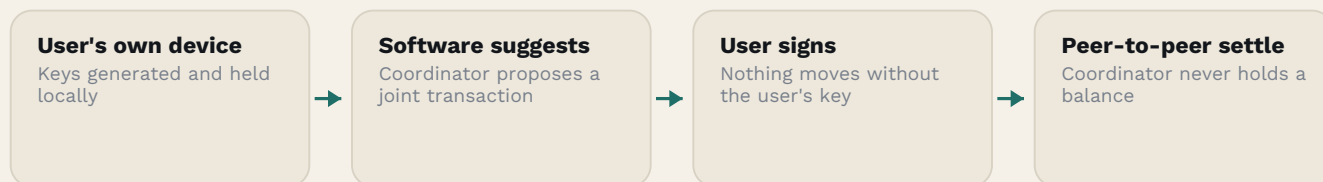
Federal money-transmission law turns on control of someone else's funds. The diagram below contrasts how a custodial service moves value with how Samourai's coordinator worked. In the lower path, the private keys never leave the user's device and the software never has the ability to move, freeze, or seize a coin.

A CUSTODIAL SERVICE — A MONEY TRANSMITTER



Control of third-party funds → registration and licensing obligations attach.

SAMOURAI — NON-CUSTODIAL COORDINATION



No control of third-party funds at any point in the sequence.

The government's position is that the distinction is not dispositive: it argued the defendants solicited criminal use, and that intent — not custody — is what made the business unlawful. That argument is set out in full in Section 07, Part 1, and should be read before this diagram is used publicly.

Anatomy of the charge.

Two counts were brought in April 2024. One was dropped in the plea. Understanding which one survived is essential to understanding the size of the ask.

COUNT	STATUTE / EXPOSURE	OUTCOME	WHAT IT REQUIRED PROVING
Conspiracy to commit money laundering	18 U.S.C. § 1956(h) — up to 20 years	Dismissed under the plea agreement	That the defendants agreed to launder the proceeds of specified unlawful activity.
Conspiracy to operate an unlicensed money transmitting business	18 U.S.C. § 1960 / § 371 — up to 5 years	Pleaded guilty, July 2025. Count of conviction.	That the business transmitted funds on behalf of the public without the required registration.

The pressure that produced the plea



Facing a twenty-five-year worst case, both men pleaded to the five-year count. Rodriguez then received every month available under it. A plea taken to avoid a charge the regulator itself reportedly doubted is the central equity in this petition.

Two people, not two entities.



Keonne Rodriguez

CEO & CO-FOUNDER • AGE 37 • FLORIDA

ROLE

Co-founded Samourai in 2015; public face of the project for a decade.

RECORD

First-time offender. No prior criminal history.

SENTENCE

60 months — the statutory maximum for the count of conviction.

FINANCIAL

Share of \$6.3M forfeiture; \$250,000 fine accruing interest while incarcerated.

NOW

FPC Morgantown, West Virginia. Register number 11404-511.



William Lonergan Hill

CTO & CO-FOUNDER • AGE 67

ROLE

Career software developer; built non-custodial tooling for decades.

RECORD

First-time offender. Extradited from Portugal, where he was living.

SENTENCE

48 months — a downward variance after a recent autism diagnosis was presented; the court stated it would otherwise have imposed 60.

FINANCIAL

Share of \$6.3M forfeiture; \$250,000 fine.

NOW

In federal custody, far from where he had been living.



Your continued noise is working. Thank you to everyone pushing to pardon Bill and me. Let's get this over the line.

KEONNE RODRIGUEZ, PUBLIC STATEMENT FOLLOWING THE PRESIDENT'S DECEMBER 2025 REMARKS

The weight brought to bear.

The proportionality argument is easier to see than to say. On one side, the agencies and instruments deployed. On the other, the defendants.

DEPLOYED AGAINST THE PROJECT

- IRS Criminal Investigation
- Federal Bureau of Investigation
- U.S. Attorney's Office, S.D.N.Y.
- DOJ Complex Frauds & Cybercrime
- Europol
- Icelandic law enforcement (server and domain seizure)
- Portuguese authorities (arrest and extradition)
- Google (Play Store removal under seizure warrant)

ON THE OTHER SIDE

2

software developers

No prior criminal history between them. Both surrendered voluntarily to begin their sentences rather than flee or continue to contest the case. Neither is accused of personally trafficking, defrauding, or profiting from the underlying crimes.

Stating this is not a claim that the investigation was improper. It is an argument about proportion at the clemency stage, which is precisely the judgement the pardon power exists to make.

SECTION

02

Draft Instrument of Pardon

A starting draft of the warrant text, plus the process that would carry it from petition to signature.

IN THIS SECTION

- The warrant text
- How a federal pardon actually moves
- What still needs confirming

A grant of executive clemency.

The text below follows the standard format used for federal executive clemency warrants. It is a starting draft only and would need to be finalised by the Office of the Pardon Attorney and White House Counsel before execution; case numbers, docket citations, and formal legal language should be confirmed against the official court record before submission.

A GRANT OF EXECUTIVE CLEMENCY

BY THE PRESIDENT OF THE UNITED STATES OF AMERICA

TO ALL WHO SHALL SEE THESE PRESENTS, GREETING:

WHEREAS Keonne Rodriguez was convicted in the United States District Court for the Southern District of New York, upon a plea of guilty, of conspiracy to operate an unlicensed money transmitting business, and was sentenced on November 6, 2025, to a term of five years' imprisonment, three years' supervised release, and a fine of \$250,000; and

WHEREAS William Lonergan Hill was convicted in the same court, upon a plea of guilty to the same offense, and was sentenced in November 2025 to a term of four years' imprisonment, three years' supervised release, and a fine of \$250,000; and

WHEREAS both defendants are first-time offenders whose software, Samourai Wallet, never took custody of any user's funds or private keys; and

WHEREAS the pardon power vested in the President by Article II, Section 2 of the Constitution exists to correct injustice and disproportionate punishment;

NOW, THEREFORE, I, [PRESIDENT'S FULL NAME], President of the United States of America, by virtue of the authority vested in me by the Constitution, do hereby grant a full and unconditional pardon to KEONNE RODRIGUEZ and WILLIAM LONERGAN HILL for the offense described above.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the Seal of the United States to be affixed.

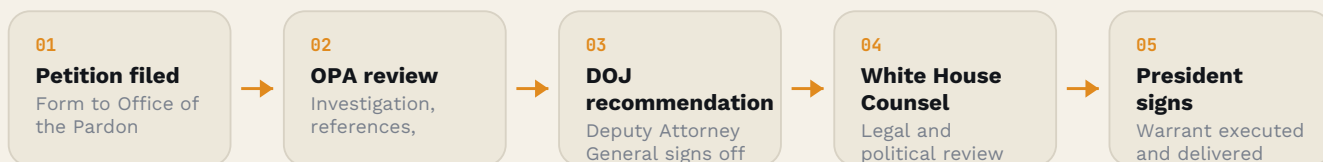
DONE at the City of Washington this ____ day of _____, in the year of our Lord two thousand twenty-six, and of the Independence of the United States of America the two hundred and fiftieth.

PRESIDENT OF THE UNITED STATES

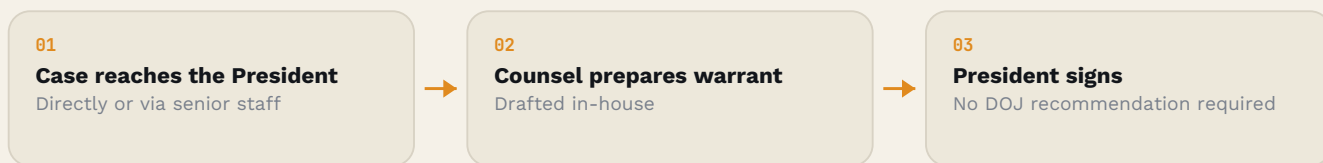
How a pardon actually moves.

Two routes exist. The formal route runs through the Office of the Pardon Attorney at the Department of Justice. The direct route runs through the White House Counsel's Office and does not require the petition to have aged through DOJ at all. Both Ulbricht and Zhao were granted through the direct route.

Route A — the formal petition track



Route B — the direct track



Where this campaign is now



Self-assessment by the drafters, intended to direct effort rather than to report measured data. The lowest bar is the one that matters most: no clemency petition succeeds without someone inside the building who owns it.

What still needs confirming.

A warrant that misstates a docket number or a sentencing date is worse than no warrant at all, because it gives a reviewer a reason to set the whole file down. The following must be checked against the official court record before this draft leaves the building.

☐ **Exact case caption and docket numbers**

Filings appear under both 1:24-cr-00082 (DLC) and superseding designations S3 24 Cr. 82. Confirm which caption controls for each defendant.

☐ **Precise sentencing dates for each defendant**

Rodriguez was sentenced on 6 November 2025. Reporting on Hill's date varies between 7 and 19 November 2025. Confirm from the judgment.

☐ **Terms of supervised release and fine**

Confirm the three-year supervised release term and the \$250,000 fine for each defendant from the judgment, not from press coverage.

☐ **Forfeiture figure and its allocation**

The commonly cited figure is \$6.3 million forfeited in fees. Confirm the ordered amount and how it splits between the defendants.

☐ **Statutory citation for the count of conviction**

Confirm whether the count is charged under 18 U.S.C. § 1960 directly or as a § 371 conspiracy, and cite accordingly.

☐ **Current designations and register numbers**

Facility and register number are needed for any communication and should be verified through the BOP inmate locator on the day of use.

SECTION

03

Public Messaging Guide

Suggested language for the President's team and for supporters — recommendations only, never to be issued in anyone's name without their approval.

IN THIS SECTION

- Talking points
- The message map
- If a reporter asks
- Lines to avoid

Suggested talking points.

These are recommendations for consideration — not statements to be attributed to the President or issued in his name without his and his staff's own review and approval. Any messaging drafted as though written by the President himself should be prepared by his communications staff, not supplied by outside advocates.

“A pardon for coders, not criminals.”

Rodriguez and Hill never touched a user's money. The software could not move a coin without the user's own key.

“It finishes what CZ and Ulbricht started.”

America will not prosecute software the way it prosecutes crime syndicates. The line is already drawn; this completes it.

“It keeps the Nashville promise.”

A specific 2024 commitment to end the prior administration's approach to crypto enforcement and defend self-custody.

“It keeps builders in America.”

Privacy engineering talent is mobile. Prosecuting toolmakers exports the industry and the tax base with it.

“The regulator said so first.”

FinCEN reportedly told prosecutors before indictment that a non-custodial service was not a money transmitting business.

“Two first-time offenders.”

Five years and four years, for men with no prior record who surrendered voluntarily rather than flee.

Sample themes for supporters

- “Code is not a crime.”
- “FinCEN itself said Samourai wasn't a money transmitter — the prosecution never should have looked like this.”
- “Two first-time offenders. Five and four years. Zero dollars taken from a single victim by their own hands.”
- “A hardware store isn't liable for a burglary committed with a crowbar it sold.”

The message map.

Different audiences need different first sentences. The core fact does not change; the entry point does. Use the column that matches the room.

THE WHITE HOUSE • Low-cost, high-loyalty delivery on a stated promise. • Precedent already absorbed the political cost. • Unilateral — no legislative lift, no interagency fight.	A GENERAL NEWSROOM • Two men are in prison for writing software. • They never held anyone's money. • The financial regulator reportedly disagreed with the theory.	A SCEPTICAL CONSERVATIVE • This is not soft on crime — the criminals who used it can still be prosecuted. • It is a limit on prosecutors inventing licensing law. • It protects gun-shop logic: the maker is not the user.	A CIVIL-LIBERTIES AUDIENCE • Financial privacy is the issue, not cryptocurrency. • Bernstein treated code as speech in 1999. • Every encryption tool sits behind this line.
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Lines to avoid

SAY THIS — “They wrote software; they never held anyone's funds.” — “The people who committed crimes can still be prosecuted.” — “The regulator reportedly told prosecutors the theory was wrong.”	NOT THIS — “Mixing is always legitimate” — invites the worst-case example immediately. — “The victims don't matter” — there were real underlying crimes and real losses. — “The judge was corrupt” — unsupported, and it loses the room instantly.
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If a reporter asks.

Suggested response framework: acknowledge the case has been reviewed; note that the developers never controlled user funds; emphasise that the sentence reflects a guilty plea to a regulatory-licensing charge, not to laundering money personally; and tie the decision to the administration's broader pro-innovation, pro-privacy posture on digital assets.

Q “Didn't \$2 billion in Bitcoin move through this thing?”

Yes — that figure is in the indictment, and it covers all volume through Whirlpool and Ricochet, lawful and unlawful together. The separate figure prosecutors tied to criminal proceeds is \$237 million. Both numbers belong in the answer; using only one of them is what makes an answer sound evasive.

Q “He called it money laundering in his own messages.”

The government put internal messages in evidence, including one in which Rodriguez described the service in those terms. That is why this is a clemency argument about proportion, not an innocence claim. The question for the President is whether five years for a first-time offender who never held a coin is the right answer.

Q “Why not just let the appeal run?”

There is no appeal to run. Both men pleaded guilty and are serving. Clemency is the only remaining instrument.

Q “Doesn't this make it open season on mixers?”

No. A pardon is individual and retrospective. It binds no prosecutor going forward and leaves every custodial mixer and every knowing launderer exactly as exposed as they are today.

SECTION

04

Political Breakdown

Who gains, who is inconvenienced, how large the constituency is, and what precedent has already been set.

IN THIS SECTION

- Who benefits and who is awkward
- The voter math
- Precedent already set
- A timeline of crypto clemency

Who benefits, who is awkward.

WHO BENEFITS

- The President: reinforces his identity as the crypto president and delivers on a specific 2024 campaign commitment.
- The crypto and open-source community: removes a chilling precedent for privacy-tool developers.
- Congressional Republicans in crypto-friendly districts: a low-cost, high-goodwill talking point with an engaged donor base.
- Civil liberties organisations across the spectrum — the Cato Institute has already called the case a chilling moment for financial privacy — giving the decision bipartisan cover.
- American competitiveness: keeps privacy and security engineering onshore and taxable.

WHO IS PUT IN AN AWKWARD POSITION

- S.D.N.Y. prosecutors and DOJ's Complex Frauds and Cybercrime Unit, whose sentencing win would be reversed.
- Lawmakers who have pushed for stricter mixer regulation and framed this case as a model prosecution.
- Any official who has publicly defended the § 1960 theory as settled law.
- Agencies that co-ordinated the international arrest and extradition and would see the outcome unwound.

Anticipating the pushback

Career DOJ officials may resist the appearance of abandoning a litigating position — namely that non-custodial software can still constitute money transmission where it is marketed toward illicit use. Any pitch should anticipate this and address it directly rather than assume it away. The strongest response is that a pardon does not disturb the legal position at all; it resolves two individual cases while leaving the government free to make the same argument tomorrow, or to seek a clearer rule from Congress.

The voter math.

Stand With Crypto reports that more than 50 million American voters hold or have held cryptocurrency — a bloc large enough to matter in close midterm races, and one that skews toward independents and libertarian-leaning Republicans who are, by nature, more up for grabs than committed partisans on either side.

50M+

CRYPTO-HOLDING VOTERS

Stand With Crypto's published count

100k+

SAMOURAI APP DOWNLOADS

Cited in the indictment

2026

MIDTERMS

The window in which goodwill compounds

Fifty million voters, one square per million



Each square is one million American voters who hold or have held cryptocurrency.

Where the research should go next

A district-by-district breakdown of crypto-voter concentration in 2026 battleground races is the natural next research phase for this campaign. Stand With Crypto and the Bitcoin Policy Institute both publish relevant advocacy data and would be reasonable partners to request district-level figures from directly. Until those figures exist, the national number should be used as a scale indicator and nothing more.

Precedent already set.

CASE	OUTCOME	RELEVANCE TO THIS REQUEST
Changpeng Zhao — Binance	Pardoned by President Trump	Establishes willingness to pardon crypto executives convicted of financial-compliance offences, including one who ran a genuinely custodial exchange.
Ross Ulbricht — Silk Road	Full and unconditional pardon, 2025	Direct precedent for clemency tied to crypto and darknet-adjacent prosecutions, granted despite far graver underlying allegations.
Roman Storm — Tornado Cash	Convicted of unlicensed money transmission, 2025	A parallel case privacy advocates cite as evidence of a broader pattern against non-custodial software rather than an isolated prosecution.
Bernstein v. DOJ, 1999	Cryptographic source code held to be protected speech	The doctrinal ancestor of the argument that authoring a tool is expression, not the operation of a financial service.

The pattern this would extend

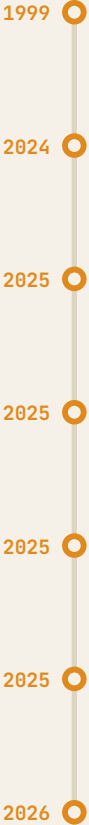
Each of these decisions moved the line in the same direction: away from treating software authorship as equivalent to running a regulated financial institution. Granting clemency here does not originate a policy. It applies one that has already been applied twice, to facts that are considerably less difficult than either of the earlier grants.



Collapsing the distinction between developing a tool and operating a service would introduce an untenable level of risk for anyone building privacy-enhancing or security-critical software.

ZACK SHAPIRO, BITCOIN POLICY INSTITUTE

A short history of the line moving.

- 
- 1999** **Bernstein v. Department of Justice**
The Ninth Circuit treats cryptographic source code as speech protected by the First Amendment, ending the export-control regime that had governed strong encryption.
 - JUL 2024** **The Nashville commitment**
At the Bitcoin Conference, then-candidate Trump pledges to end what he calls the prior administration's anti-crypto crusade and to defend the right to self-custody.
 - JAN 2025** **Ross Ulbricht pardoned**
A full and unconditional pardon, absorbing the bulk of the political friction that attaches to clemency in this space.
 - APR 2025** **Blanche memorandum**
Deputy Attorney General Todd Blanche directs federal prosecutors to step back from cases against crypto privacy tools.
 - 2025** **Changpeng Zhao pardoned**
Clemency extended to the founder of the largest crypto exchange following a financial-compliance conviction.
 - DEC 2025** **"I'll look at it."**
Asked about Rodriguez in the Oval Office, the President says he has heard about the case and turns to the Attorney General: "We'll look at that, Pam."
 - 2026** **The open question**
Two developers remain in federal prison under the theory the department has since told prosecutors to avoid.

SECTION

05

What Supporters Can Offer

The section the original draft left blank: a concrete ladder of actions, from thirty seconds to thirty days.

IN THIS SECTION

- The support ladder
- The coalition map
- What is actually needed

The support ladder.

Campaigns fail when the only available action is a donation. The ladder below is ordered by effort, so that anyone reading can find the rung they can actually reach today.

30 SECONDS

Sign the petition

Hosted on Change.org and linked from freesamourai.com. Signature counts are the cheapest legible evidence of public support.

2 MINUTES

Post one fact, not one slogan

The FinCEN correspondence and the non-custodial architecture travel further than “code is not a crime” on its own.

10 MINUTES

Write to Bill and Keonne

Letters to FPC Morgantown and to Hill's facility. Addresses are published on freesamourai.com and on billandkeonne.org.

15 MINUTES

Contribute to the families

Legal costs continue and the \$250,000 fines accrue interest while both men are incarcerated and unable to earn.

1 HOUR

Call your representative's office

Ask them to write to the White House Counsel in support. A single member letter changes the temperature of a file.

1 DAY

Publish something with your name on it

An op-ed, a technical explainer, or a podcast segment. Named advocates are what turn a cause into a coalition.

1 WEEK

PGP-sign the statement

The data-room repository accepts clear-signed statements from developers; a wall of verified signatures from working engineers is unusual and persuasive.

ONGOING

Bring an institution with you

The highest-value action available: get an organisation, not just a person, to go on record.

The coalition map.

Support already exists across four distinct constituencies that rarely appear in the same document. Mapping them makes the gaps obvious.

POLICY INSTITUTIONS

- Bitcoin Policy Institute — published legal and policy case for pardons
- Cato Institute — called the case a chilling moment for financial privacy

MEDIA AND EXPLAINERS

- Natalie Brunell, Coin Stories
- Kim Iversen Show
- Naomi Brockwell TV
- Reason, Decrypt, CoinDesk, Bitcoin Magazine coverage

CAMPAIGN INFRASTRUCTURE

- freesamourai.com — public record of the case
- billandkeonne.org — family and legal support
- Change.org petition
- free-samourai/data-room — signed statements

STILL MISSING

- A named champion inside the White House
- A sitting member of Congress on the record
- A mainstream civil-liberties organisation outside the crypto space
- A camera-ready family spokesperson

The right-hand column of the second row is the entire remaining task. Everything else on this page already exists.

SECTION

06

Political Context & Precedent

What has actually been said on the record, and the friction any pitch should expect to meet.

IN THIS SECTION

- What the President has said
- Related public commitments
- Known points of friction

What has actually been said.

This section sticks to publicly reported facts rather than speculation about private motives, since the latter would be both unreliable and inappropriate for a document meant to be trustworthy.

“

I've heard about it, I'll look at it. ... We'll look at that, Pam.

PRESIDENT TRUMP, OVAL OFFICE, 15 DECEMBER 2025, RESPONDING TO A QUESTION ABOUT KEONNE RODRIGUEZ'S CASE AND TURNING TO ATTORNEY GENERAL PAM BONDI

Related public commitments

- **Nashville, July 2024.** At the Bitcoin Conference, then-candidate Trump pledged to end what he described as the prior administration's anti-crypto crusade and to protect the right to self-custody.
- **Clemency already granted.** The administration has extended clemency in comparable cases — Zhao and Ulbricht — establishing a pattern this request would extend rather than originate.
- **Departmental direction.** In April 2025, Deputy Attorney General Todd Blanche directed federal prosecutors to back off cases against crypto privacy tools; senior officials later told crypto policy leaders the department would refrain from prosecuting decentralised software developers going forward.

The awkward gap

Those two facts sit uneasily together. The department has signalled it will not bring this kind of case again, while two men convicted under exactly that theory continue to serve sentences imposed under it. Clemency is the only instrument that closes the gap, because the department cannot un-convict them and no appeal remains.

Known friction, and the answer to it.

“This undermines a legitimate prosecution the department won.”

A pardon does not vacate the conviction's legal reasoning or bind a future prosecutor. It resolves two individual sentences. The department's litigating position survives entirely intact.

“The defendants admitted the conduct in their own messages.”

They did, and this document reproduces those admissions in Section 07. Clemency is a judgement about proportion, not a finding of innocence, and it is the one form of relief that does not require re-litigating guilt.

“It sends a signal that mixers are protected.”

The signal it sends is narrower: that writing non-custodial software is not, by itself, operating a money transmitting business. Custodial mixers and knowing launderers remain fully exposed.

“Victims of the underlying crimes deserve consideration.”

They do — and none of them were defrauded by Rodriguez or Hill. The people who committed those crimes remain liable, and clemency here neither reduces their exposure nor returns any forfeited money.

“Why now, rather than after they serve more time?”

Because the specific harm is ongoing: an incarcerated developer cannot earn against a \$250,000 fine that accrues interest, and the chilling effect on other builders compounds every month the conviction stands unaddressed.

Any pitch to the administration should assume every one of these objections will be raised by someone in the room, and should arrive with the answer already written down.

SECTION

07

Full Legal Analysis

The case against Rodriguez and Hill stated plainly and without softening — followed by the strongest arguments for clemency.

IN THIS SECTION

- Part 1 — the case against, stated plainly
- The government's numbers
- Part 2 — the three strongest arguments
- Part 3 — supporting arguments
- Part 4 — the human element

The case against, stated plainly.

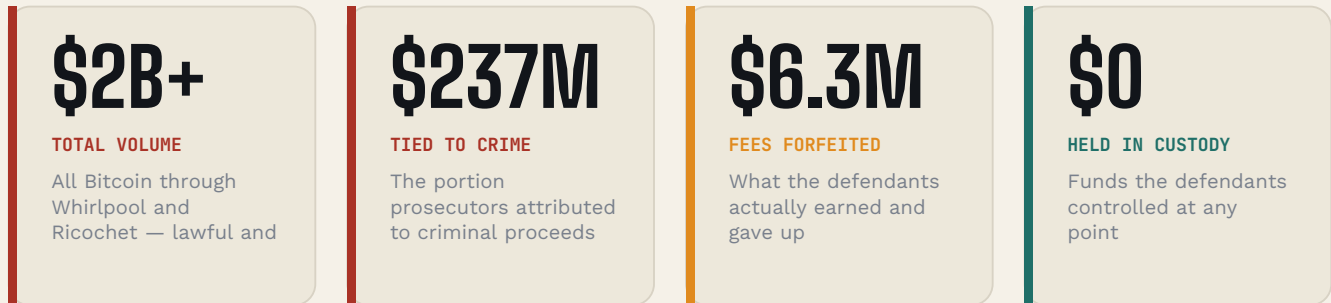
This section is written to be candid about the case's weaknesses first, on the theory that a pardon request loses credibility if it minimises or omits unfavourable facts.

- Both men were charged in April 2024 with conspiracy to operate an unlicensed money transmitting business and conspiracy to commit money laundering; both pleaded guilty in July 2025 to the money-transmitting charge.
- Prosecutors said Samurai's Whirlpool and Ricochet services moved more than \$2 billion in Bitcoin, and that over \$237 million of that was tied to drug trafficking, darknet marketplaces, cyber-intrusions, fraud, sanctioned jurisdictions, murder-for-hire schemes, and a child exploitation website.
- Court evidence, including WhatsApp messages, reportedly showed Rodriguez describing the service internally as “money laundering for Bitcoin.”
- Prosecutors said Hill responded on the darknet forum Dread to a user seeking to “clean dirty BTC” by recommending Whirlpool, and that Rodriguez had encouraged 2020 Twitter-hack perpetrators to route stolen funds through the service.
- In his own sentencing letter, Hill admitted that inviting “computer hackers and other criminals” to launder proceeds through Samurai “spiralled well beyond acceptable limits.”
- The government's sentencing memorandum argued explicitly that the crimes were “not predicated on a regulatory lapse” but on an intent to help criminals launder funds, and sought 60 months for each defendant.
- Both defendants forfeited more than \$6.3 million in fees earned from Samurai's operation and paid \$250,000 fines each.

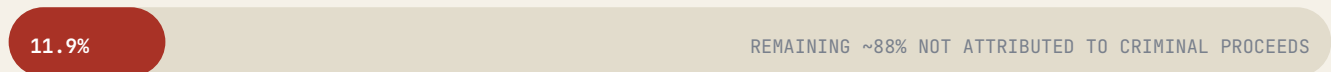
Any data room presented to White House staff should not understate these facts. A credible pardon request has to be built on top of them, not around them.

The government's numbers.

Four figures do most of the work in the government's public account of this case. Printed together and to scale, they also show what each one does and does not establish.

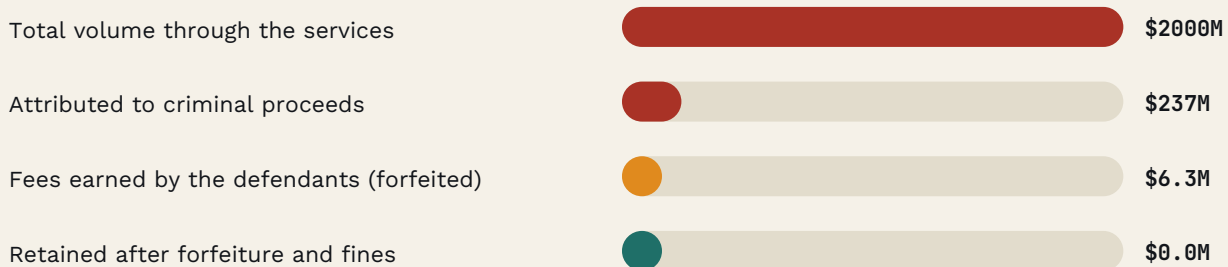


The \$237 million in context



The larger figure is a throughput number for the whole service across years of operation. The smaller one is the portion prosecutors linked to criminal proceeds. Both belong in any honest account: quoting \$2 billion alone overstates the criminality, and omitting \$237 million understates it.

What the defendants personally took



The three strongest arguments.

1 • FinCEN's own guidance undercuts the legal theory

According to reporting by Reason and the Bitcoin Policy Institute, FinCEN told DOJ prosecutors in official correspondence, prior to indictment, that a non-custodial service like Samourai — one that never took control of users' Bitcoin or private keys — did not meet the statutory definition of a money transmitting business. If accurate, the government proceeded with the core charge despite guidance from its own designated regulator that the underlying legal theory was shaky. This is, by itself, the single strongest argument for clemency: it suggests the plea was extracted under the threat of a legally uncertain, maximalist charge rather than a clearly established one.

2 • The precedent threatens software development broadly

Treated as precedent, this case would expose any developer of open-source, privacy-preserving software — encryption tools, coinjoin implementations, even certain wallet software — to money-transmission liability for the independent criminal acts of a subset of their users. That is a chilling effect with consequences well beyond two individuals, and it is already observable: developers have withdrawn privacy features and relocated projects rather than test the theory.

3 • Disproportionate punishment given individual circumstances

Rodriguez and Hill are both first-time offenders. Hill, 67, was sentenced with an explicit downward variance after his attorney presented evidence of a recent autism diagnosis; the sentencing judge stated she would otherwise have imposed the full sixty-month term. Hill was also extradited from Portugal, where he had been living. Rodriguez, 37, has described serious financial hardship for his family. Neither man is accused of personally trafficking drugs, committing fraud, or profiting from the underlying crimes their software's misuse enabled — their liability rests entirely on their role as toolmakers.

The regulator and the prosecutor.

If the reported sequence is accurate, the agency Congress designated to define money transmission told the prosecutors bringing the charge that the charge did not fit — before the indictment was returned.

FinCEN

The designated regulator for money services businesses under the Bank Secrecy Act

Pre-indictment correspondence

Reportedly advises that a non-custodial service does not meet the statutory definition

Indictment returned anyway

April 2024 — both counts brought

Plea under exposure

July 2025 — 20-year count dropped in exchange for the 5-year count

Maximum sentence imposed

November 2025 — 60 months and 48 months

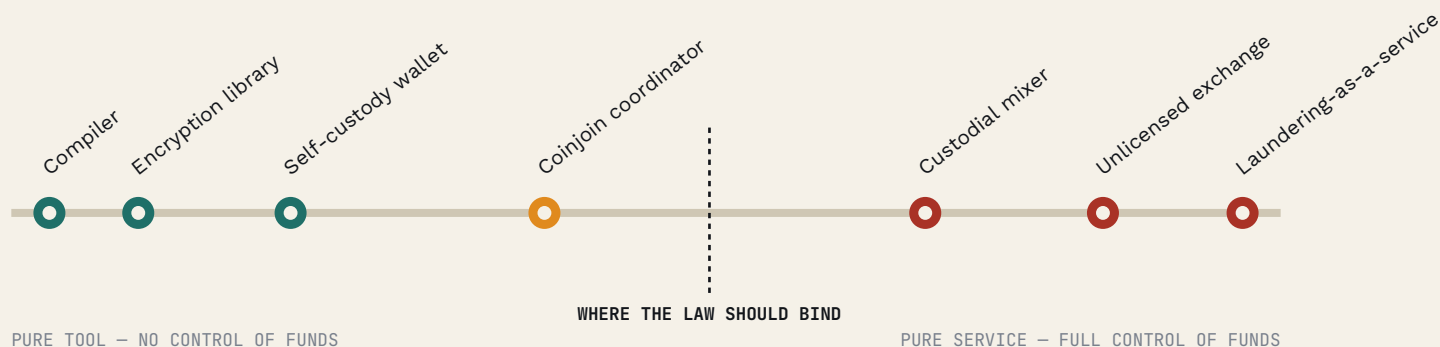
This sequence rests on reporting rather than on a document in the public docket. Obtaining or confirming the FinCEN correspondence — through FOIA, congressional request, or direct disclosure — is the single highest-value research task remaining for this campaign.

Why it matters at the clemency stage

A pardon reviewer is not asked whether the conviction was lawful. They are asked whether the punishment is just. A conviction obtained on a theory the government's own regulator questioned, from a defendant who pleaded to avoid a twenty-year count, is the paradigm case for the power to exist.

Where the line should sit.

The question is not whether a line exists between a tool and a service. It is where it sits. Placed on a spectrum, the case for clemency is a claim that Samurai sat on the left of the line and was punished as though it sat on the right.



FACTS PLACING SAMOURAI LEFT OF THE LINE

- Keys generated and held on the user's own device.
- No balance ever held by the operator; nothing could be frozen or seized.
- Source published openly and reviewable by anyone.
- The reported FinCEN position that this is not money transmission.

FACTS THE GOVERNMENT USED TO PUSH IT RIGHT

- Marketing and solicitation directed at users seeking to conceal proceeds.
- Internal messages describing the service in laundering terms.
- Fees charged per transaction — a revenue model, not a donation.
- \$237 million in proceeds attributed to criminal sources.

Proportion.

Statutory maxima for the count of conviction, set beside the sentences actually imposed and against other federal offences, are the clearest way to show what five years for a first-time, non-custodial software offence represents.



What the record shows about each defendant

	RODRIGUEZ	HILL
Age at sentencing	37	67
Prior record	None	None
Sentence	60 months — statutory maximum	48 months — downward variance
Basis for variance	None granted	Recent autism diagnosis presented at sentencing; court indicated it would otherwise have imposed 60 months
Route into custody	Voluntary surrender	Arrested in Portugal; extradited to the United States
Financial penalty	\$250,000 fine; share of \$6.3M forfeiture	\$250,000 fine; share of \$6.3M forfeiture
Supervised release	Three years	Three years

Additional supporting arguments.

Comparable cases

Roman Storm, developer of the Ethereum mixing tool Tornado Cash, was convicted of unlicensed money transmission in 2025. Advocates argue this reflects a pattern of prosecutorial reach against non-custodial software generally, rather than an isolated case turning on these defendants' own statements.

Chilling effect on U.S. competitiveness

If American developers of privacy software face this level of legal exposure, the practical effect is to push that development offshore, to jurisdictions with less regulatory ambiguity — arguably undermining, not advancing, U.S. leadership in the crypto and cybersecurity industries. The people who leave are not marginal: privacy engineering overlaps almost completely with the security engineering that defends critical infrastructure.

Constitutional and code-as-speech arguments

While unresolved in this case, U.S. courts have previously treated cryptographic source code as protected speech — *Bernstein v. U.S. Department of Justice*, 1999 — a doctrine advocates argue supports treating the authorship of open-source privacy tools differently from operating a financial service.

The department's own current position

In April 2025 the Deputy Attorney General directed prosecutors to step back from cases against crypto privacy tools, and senior officials subsequently indicated the department would refrain from prosecuting decentralised software developers. If that is the department's forward-looking position, the two men serving sentences under the prior approach are, by the department's own reckoning, the last of a discontinued line.

What clemency would and would not disturb

UNTOUCHED BY A PARDON

- The convictions and sentences of anyone who used Samourai to launder proceeds.
- The \$6.3 million forfeiture already paid to the government.
- The department's ability to argue the same statutory theory in a future case.
- Any pending or future regulatory rulemaking by FinCEN.

RESOLVED BY A PARDON

- Nine combined years of imprisonment for two first-time offenders.
- Fines accruing interest against men who cannot earn while incarcerated.
- The signal to developers that publishing privacy code carries prison risk.
- A conviction obtained under a theory the department has since retired.

The human element.

Behind the legal theory are two specific people. Bill Hill is 67, recently diagnosed with autism, extradited from Portugal, and now serving a four-year sentence far from the country where he had been living. Keonne Rodriguez is 37, a first-time offender who has publicly described the financial toll of his legal defence and forfeiture on his family. Both surrendered voluntarily to begin their sentences rather than fleeing or continuing to contest the case.

The debt does not pause

Both men face a \$250,000 fine that accrues interest while they are incarcerated and unable to earn income, on top of legal expenses already incurred. Their families are carrying the case in their absence. Contributions at billandkeonne.org go toward legal costs, day-to-day expenses, and the effort to bring them home.

\$250k

FINE, EACH

Accruing interest during incarceration

\$0

INCOME WHILE INSIDE

Neither man can earn against the debt

2

FAMILIES CARRYING IT

In the absence of both men

Where to write

KEONNE RODRIGUEZ

Keonne Rodriguez
11404-511
FPC Morgantown
FEDERAL PRISON CAMP
P.O. BOX 1000
MORGANTOWN, WV 26507

WILLIAM LONERGAN HILL

Facility and register number should be confirmed through the Bureau of Prisons inmate locator on the day of writing; current details are published and maintained at freesamourai.com.

Letters are screened. Keep them short, personal, and free of anything that could be read as legal advice or as a request for information about the case.

SECTION

08

Code, Privacy, and Progress

The reframing: what the law has always done with new tools, and why financial privacy is not a fringe interest.

IN THIS SECTION

- The tool and the user
- Privacy as a constitutional value
- Technology outruns the law
- The practical case

The tool and the user.

The strongest version of this case does not ask the President to excuse money laundering. It asks him to draw a clear line between people who commit financial crimes and people who write software that a minority of users later misuse — a distinction the law has long recognised in other contexts.

The same logic, elsewhere in the law

TOOL	MISUSED BY SOME	MAKER'S LIABILITY
A crowbar sold at a hardware store	Burglary	None. The seller is not a party to the break-in.
A car sold by a dealership	Getaway driving	None, absent knowledge of the specific plan.
A VPN or encryption library	Concealing criminal communications	None. The tool is lawful and widely used.
A cash-counting machine	Counting laundered cash	None. The machine does not know whose money it is.
Non-custodial Bitcoin software	Concealing proceeds by some users	Five years, in this case.

The final row is the argument in a single line. Reasonable people can debate where solicitation crosses into participation — and the government's evidence on solicitation is real and reproduced in Section 07. But the sentence imposed treats the toolmaker as though he were the launderer, and that is the equity a pardon exists to correct.

Privacy as a constitutional value.

Financial privacy has deep roots in American law and practice, from cash transactions to bank-secrecy carve-outs for individuals. Samurai's supporters argue that Bitcoin's public, permanent ledger creates a genuinely new problem — every transaction is visible forever, to anyone, retroactively — and that tools like Whirlpool exist to restore, for law-abiding users, the level of financial privacy that cash has always provided.

What a permanent public ledger actually exposes

Your salary

Anyone paid in Bitcoin exposes their income to every counterparty they later transact with.

Your balance

A single address disclosed to a stranger reveals net worth, permanently and retroactively.

Your suppliers

Businesses expose margins, vendors, and payroll to competitors reading the chain.

Your donations

Political and religious giving becomes publicly linkable to a person forever.

Your family

Payments to relatives map a household's structure and dependencies.

Your safety

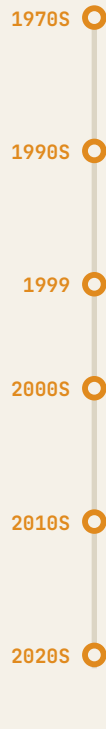
Visible balances create physical risk — the reason wrench-attack is a term of art.

Technological progress has always outrun the law

New technologies — strong encryption, peer-to-peer file sharing, even early automobiles — have repeatedly forced regulators to catch up after the fact, and have often been treated with initial suspicion before their legitimate uses were recognised. Advocates argue that privacy technology deserves the same evolving treatment: judged by its lawful uses and the intent of its builders, not solely by its worst-case misuse.

This argument is not new.

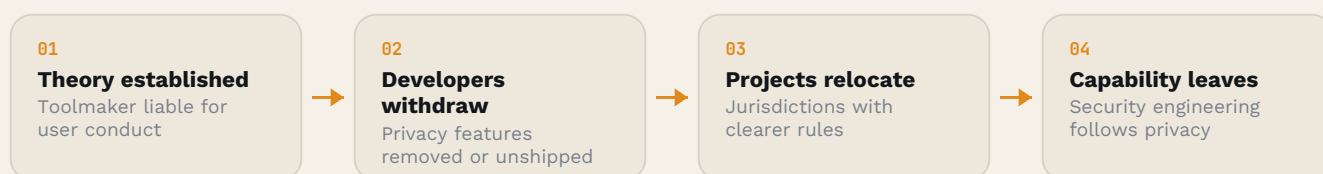
Every generation of privacy technology has been treated first as a threat and then as infrastructure. The pattern is consistent enough to be predictive.

- 
- 1970S** ○ **Public-key cryptography**
Treated as a munition. Export controlled. Now the basis of every online payment in the world.
 - 1990S** ○ **PGP and the crypto wars**
A criminal investigation into the author of email encryption, closed without charges. The software became a standard.
 - 1999** ○ **Bernstein v. DOJ**
Source code held to be protected speech; export restrictions on encryption collapse.
 - 2000S** ○ **Peer-to-peer file sharing**
Framed entirely by its worst use. The underlying protocols now distribute software updates at planetary scale.
 - 2010S** ○ **Tor and the darknet framing**
Funded by the U.S. government, described in prosecutions as a criminal tool, relied on by journalists and dissidents.
 - 2020S** ○ **Non-custodial Bitcoin privacy**
Two developers in federal prison. The question is which side of the pattern this decade ends on.

A practical, not just moral, case.

- **Talent is mobile.** Aggressive prosecution of tool-builders creates a direct incentive for privacy-focused engineering talent to build — and pay taxes — elsewhere.
- **No legislation required.** A pardon is a unilateral, low-friction action available to the President today, with no committee, no floor time, and no interagency negotiation.
- **It buys room to draw a real line.** Clemency lets the administration set forward-looking policy through legislation or FinCEN guidance without leaving two individuals to serve years under an approach it may not wish to defend long-term.
- **It is durable.** A pardon cannot be reversed by a future administration, which makes it a more credible signal to builders than any memorandum or speech.

The chilling effect, made concrete



The last box is the one that should concern a national-security reader most. The engineers who build financial privacy tools are the same population that builds the cryptography defending hospitals, grids, and payment rails. A rule that drives them offshore does not remove the capability from the world; it removes it from the United States.

SECTION

09

Conclusion & Call to Action

What is true, what remains to be done, and who has to do it.

IN THIS SECTION

- The conclusion
- Immediate next steps
- Ownership and timing

What remains is execution.

Keonne Rodriguez and William Hill built software. They did not run a bank, launder money themselves, or profit from the crimes that a portion of their users committed. The government's own financial-crimes regulator reportedly cautioned against the core legal theory used to prosecute them. Two respected policy organisations — the Bitcoin Policy Institute and the Cato Institute — have gone on record in support of clemency. The President has indicated he is open to reviewing the case.

What remains is execution: assembling a credible, honest, well-organised case; putting it in front of the people who can act on it; and building enough public pressure that acting on it becomes the easy, popular choice rather than a hard one.

The four facts to leave in the room

Never held a coin

Non-custodial by architecture. The software could not move funds without the user's own key.

The regulator disagreed

FinCEN reportedly told prosecutors, pre-indictment, that this was not money transmission.

First-time offenders

No prior record between them. Both surrendered voluntarily; one was extradited at 67.

The precedent is already set

Ulbricht and Zhao absorbed the political cost. This is the easier decision, not the harder one.

“

They did not run a bank. They wrote software, published it in the open, and never held a single user's key.

THE ARGUMENT, IN ONE SENTENCE

Immediate next steps.

☐ Finalise and fact-check this data room

Against primary sources — court filings, DOJ and IRS press releases, and the FinCEN correspondence if it can be obtained or confirmed — before it is shared with anyone in the administration.

☐ Obtain or confirm the FinCEN correspondence

The highest-value outstanding item. Routes: FOIA request, congressional inquiry, or direct disclosure by a party who has seen it.

☐ Coordinate the institutional coalition

Reach out to the Bitcoin Policy Institute, the Cato Institute, and the organisers of billandkeonne.org to align messaging and confirm willingness to be publicly associated with a joint push.

☐ Identify camera-ready supporters

A small number of credible industry figures, policy experts, and family members willing to participate in a public moment if the White House engages.

☐ Find a champion inside the building

No clemency petition succeeds without someone in the White House who owns the file. This is the binding constraint on everything else.

☐ Prepare the warrant package

Verified docket citations, sentencing dates, and a clean draft warrant, so that a decision to act is not delayed by paperwork.

☐ Monitor and iterate

Watch for any DOJ or White House response and adjust the pitch based on real feedback rather than assumptions.

Ownership and timing.

A plan without owners is a wish. The table below is deliberately structured so that no row depends on a resource this campaign does not already have, with the single exception of the last one.

WORKSTREAM	OWNER	DEPENDENCY	TIMING
Fact-check against the docket	Volunteer legal reviewers	CourtListener access; no cost	Immediate
FinCEN correspondence	Whoever has counsel available	FOIA or congressional route	Start now, expect months
Institutional sign-on	Campaign organisers	BPI and Cato relationships already exist	Weeks
Public pressure	Everyone	Petition, media, signed statements	Continuous
Warrant package	Campaign organisers	Completed fact-check	After fact-check
White House champion	Unassigned	A relationship the campaign does not yet have	The critical path

Why timing matters

Two clocks are running. The first is the sentence: every month that passes is a month of a finite life spent in a federal facility, and interest continuing to accrue on fines that cannot be paid from inside. The second is political: attention in this space is episodic, and the December 2025 remark is the opening. Openings close.

SECTION

10

Sources & Verification Log

Every substantive claim in this document, and where a reviewer can check it.

IN THIS SECTION

- Primary sources
- Reported claims
- Editorial judgements
- How to challenge a line in this document

Sources consulted.

Primary

- United States v. Rodriguez and Hill, S.D.N.Y. No. 1:24-cr-00082 — indictment, superseding indictments, plea agreements, both sides' sentencing memoranda, and the judgments.
- U.S. Department of Justice (Southern District of New York) press releases, April 2024 and November 2025.
- Internal Revenue Service, Criminal Investigation — public statements on the investigation.

Reported

- Reason and the Bitcoin Policy Institute — reporting on FinCEN's pre-indictment correspondence with prosecutors.
- Decrypt — the President's 15 December 2025 Oval Office remarks.
- Bloomberg, BleepingComputer, CoinDesk, Bitcoin Magazine — charging details and case volume figures.
- Bitcoin Policy Institute — “Pardoning the Samurai Developers Would Correct a Misapplication of Federal Law.”
- Cato Institute — commentary describing the case as a chilling moment for financial privacy.

Campaign

- freesamurai.com — public record of the case, coverage, and prison correspondence addresses.
- billandkeonne.org — family and legal support.
- Change.org — the pardon petition.
- github.com/free-samurai/data-room — the signed-statement repository.

How to challenge a line in this document

If any claim here does not survive checking against a primary source, it should be struck rather than softened. A clemency file is read by people whose professional instinct is to look for the one thing that is wrong. Give them nothing.

CODE IS NOT A CRIME.

Keonne Rodriguez and William Lonergan Hill are serving nine combined years in federal prison for writing and publishing non-custodial Bitcoin software. Neither man ever held a user's funds or a user's keys. A full and unconditional pardon would correct that, and it requires one signature.

freesamurai.com

The public record of the case

billandkeonne.org

Support for the families and the legal effort

[Change.org](https://change.org)

Sign the petition for a full pardon

github.com/free-samurai/data-room

PGP-signed statements from developers
